

24STCV26848 24STCV26848

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-09-08

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Case Number: 24STCV26848 Hearing Date: September 8, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: September

8, 2026 TRIAL DATE: October

5, 2026

CASE: Maria Teresa

Rodriguez Rangel v. MV Transportation, Inc.

CASE NO.: 24STCV26848

MOTION

FOR RELIEF FROM BENCH TRIAL

MOVING

PARTY: Plaintiff Maria Teresa Rodriguez

Rangel

RESPONDING

PARTY: No opposition

I. INTRODUCTION

On October 15, 2024, Plaintiff, Maria Teresa Rodriguez Rangel, filed a Judicial Council Form Complaint against Defendant, MV Transportation, Inc., arising from injuries sustained in a motor vehicle accident.

On November 20, 2024, Defendant filed an Answer to the Complaint.

On February 13, 2025, Plaintiff filed a Case Management Statement. Plaintiff requested a jury trial.

On February 25, 2025, the court scheduled a non-jury trial for October 5, 2026.

On February 28, 2025, Plaintiff posted jury fees.

On June 29, 2026, Plaintiff filed this motion for relief from bench trial.

The motion is unopposed.

II. LEGAL STANDARD

Under the California constitution, “[t]rial by jury is an inviolate right and shall be secured by all[.]”¹ Therefore, “[w]here doubt exists concerning the propriety of granting relief from [a jury trial] waiver, this doubt, by reason of the constitutional guarantee of right to jury trial, should be resolved in favor of the party requesting trial by jury.”² (Gann v. Williams Brothers Realty, Inc. (1991) 231 Cal.App.3d 1698, 1703-1704.)³ The court may, in its discretion upon just terms, allow a trial by jury despite the waiver.⁴ (Code Civ. Proc., § 631, subd. (g).)⁵ Where the right to jury is threatened, the crucial focus is whether any prejudice will be suffered by any party or the court if a motion for relief from waiver is granted.⁶ (Tesoro del Valle Master Homeowners Ass’n v. Griffin (2011) 200 Cal.App.4th 619, 638-39.)⁷ “A trial court abuses its discretion as a matter of law when ‘. . . relief has been denied where there has been no prejudice to the other party or to the court from an inadvertent waiver. [Citations.]’”⁸ (Wharton v. Superior Court (1991) 231 Cal.App.3d 100, 104.)⁹ ¹⁰

III. DISCUSSION

The court will grant the motion. Plaintiff timely requested a jury trial and made

this motion in a reasonable time prior to the scheduled jury trial. (See Code Civ. Proc., § 631, subd. (c)(2).) Given the foregoing, as well as the absence of opposition and prejudice to Defendant, the court will exercise its discretion to grant the requested relief.

IV. CONCLUSION

The motion for relief from waiver of jury trial is GRANTED.

Plaintiff
to give notice, unless waived.

Dated: September 8,
2026

Brock T. Hammond

Judge of the Superior Court